



CHAPTER 34.

An Act to constitute Special Commissions to inquire into the origin, inception, and conduct of Operations of War in the Dardanelles and Gallipoli, and into the origin, inception, and conduct of Operations of War in Mesopotamia. A.D. 1916.
[17th August 1916.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) The following persons, namely,

The Right Honourable the Earl of Cromer, G.C.B., O.M.,
G.C.M.G., K.C.S.I., C.I.E.,
The Right Honourable Andrew Fisher,
The Honourable Sir Thomas Mackenzie, K.C.M.G.,
Sir Frederick Cawley, Baronet, Member of Parliament,
James Avon Clyde, Esquire, King's Counsel, Member of
Parliament,
Captain Stephen Lucius Gwynn, Member of Parliament,
Walter Francis Roch, Esquire, Member of Parliament,
Admiral of the Fleet Sir William Henry May, G.C.B.,
G.C.V.O.,
Field-Marshal Lord Nicholson, G.C.B., and
The Right Honourable Sir William Pickford, Knight, one
of the Lords Justices of Appeal,

Appointment
of Commis-
sioners.

are hereby appointed Commissioners for the purpose of inquiring into the origin, inception, and conduct of operations of war in the Dardanelles and Gallipoli, including the supply of drafts, reinforcements, ammunition, and equipment to the troops and fleet, the provision for the sick and wounded, and the responsibility of those departments of Government whose duty it has been to minister to the wants of the forces employed in that theatre of war.

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(2) The following persons, namely,

The Right Honourable Lord George Francis Hamilton,
G.C.S.I.,

The Right Honourable the Earl of Donoughmore, K.P.,

Lord Hugh Cecil, Member of Parliament,

Sir Archibald Williamson, Baronet, Member of Parliament,

John Hodge, Esquire, Member of Parliament,

Commander Josiah C. Wedgwood, Member of Parliament,

Admiral Sir Cyprian Arthur George Bridge, G.C.B., and

General the Right Honourable Sir Neville Gerald Lyttelton,
G.C.B., G.C.V.O.,

are hereby appointed Commissioners for the purpose of inquiring into the origin, inception, and conduct of operations of war in Mesopotamia, including the supply of drafts, reinforcements, ammunition, and equipment to the troops and fleet, the provision for the sick and wounded, and the responsibility of those departments of Government whose duty it has been to minister to the wants of the forces employed in that theatre of war.

Powers of
Commis-
sioners.

2.—(1) The Commissioners appointed under this Act (in this Act referred to as the Commissioners) shall have all such powers, rights, and privileges as are vested in the High Court or in any judge thereof, on the occasion of any action, in respect of the following matters:—

(a) The enforcing the attendance of witnesses and examining them on oath, affirmation, or otherwise, and the issue of a commission or a request to examine witnesses abroad; and

(b) The compelling the production of documents; and

(c) The punishing persons guilty of contempt;

and a summons signed by one or more of the Commissioners may be substituted for and shall be equivalent to any formal process capable of being issued in any action for enforcing the attendance of witnesses and compelling the production of documents.

(2) A warrant of committal to prison issued for the purpose of enforcing the powers conferred by this section shall be signed by one or more of the Commissioners, and shall specify the prison to which the offender is to be committed, but shall not authorise the imprisonment of an offender for a period exceeding three months.

(3) The Commissioners may authorise the representation before them of any person appearing to them to be interested by counsel, or solicitor, or otherwise, if they consider that any injustice would ensue if that person were not so represented.

(4) The Commissioners may act notwithstanding any vacancy in their number, and three shall be a quorum, but the Commissioners may delegate to any two or more of their number their powers of holding sittings for the purpose of making inquiries and taking evidence abroad and any powers in relation thereto.

3.—(1) The Commissioners shall, having regard to the interests of the public and to naval, military, and diplomatic considerations, allow or refuse to allow the public or any portion of the public to be present during any proceedings of the Commissioners: Provided that a full and complete record in shorthand shall be kept of all evidence taken whether in public or in private.

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Discretion to hold proceedings either in public or in private.

(2) If any person who is present at any proceedings of the Commissioners at which the public or any portion thereof are not allowed to be present discloses, without the authority of the Commissioners, or without proper authority given on behalf of His Majesty, either directly or indirectly, anything that has taken place at those proceedings, he shall be guilty of a misdemeanour, and the Official Secrets Act, 1911, shall apply as it applies to misdemeanours under section two of that Act.

1 & 2 Geo. 5, c. 28.

4.—(1) A person examined as a witness by the Commissioners shall not be excused from producing any document or giving any information on the ground that such document or information is secret or confidential, or is entitled to be withheld under section two of the Official Secrets Act, 1911, or from answering any question put to him, or from producing any document, on the ground that the answer thereto or production thereof may criminate or tend to criminate him, but any answer so given shall not be evidence against that person in any criminal proceeding (including a proceeding by court-martial) at any time thereafter instituted against him, and any document so produced shall not be evidence against him in any such proceeding unless the production of that document could be enforced in those proceedings or evidence of that document could be otherwise obtained in any such proceedings.

Indemnity to witnesses.

(2) Nothing in this section shall apply to the case of proceedings for having given false evidence before the Commissioners, or of having procured, or attempted or conspired to procure, the giving of such evidence.

5. The Commissioners may hold sittings outside the United Kingdom, and for the purpose of any such sittings in India, or of anything required to be done in India by or on behalf of the Commissioners, this Act shall have effect as if a High Court or Chief Court in British India were substituted for the High Court.

Sittings outside the United Kingdom.

6. Any report of the Commissioners and any minority report shall be laid as soon as may be before both Houses of Parliament, and the Commissioners may, if they think fit, make interim reports: Provided that the Commissioners appointed to inquire into the Mesopotamia campaign shall proceed with all possible expedition to inquire with regard to the provision for the sick and wounded, and shall report the result of their inquiries on this matter as soon as they are completed.

Reports.

[CH. 34.]

*Special Commissions (Dardanelles
and Mesopotamia) Act, 1916.*

A.D. 1916.
Short title.

7. This Act may be cited as the Special Commissions
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